PROPOSED

CONSTITUTIONAL AMENDMENTS

GENERAL ELECTION

NOVEMBER 3, 2026

Constitutional Amendments 1-3 and
Summaries of Amendments

This booklet contains copies of the three proposed amendments to the Constitution in their entirety. These amendments will be submitted at the general election on November 3, 2026. As required by the Constitution, these proposed amendments in their entirety are on file in the office of the judge of the probate court in each county and are available for public inspection. This booklet also includes summaries of the three proposals as prepared by Attorney General Christopher Carr, Secretary of State Brad Raffensperger, and Legislative Counsel Betsy Howerton and published in the newspaper which is each county's official legal organ.

House Resolution No. 32
Ga. L. 2025, p. 1081

A RESOLUTION

Proposing an amendment to the Constitution so as to increase the maximum acreage to qualify for assessment and taxation as a bona fide conservation use property; to provide for related matters; to provide for the submission of this amendment for ratification or rejection; and for other purposes.

BE IT RESOLVED BY THE GENERAL ASSEMBLY OF GEORGIA:

SECTION 1.

Article VII, Section I, Paragraph III of the Constitution is amended by revising subparagraph (e)(1) as follows:

"(e) The General Assembly shall provide by general law:

(1) For the definition and methods of assessment and taxation, such methods to include a formula based on current use, annual productivity, and real property sales data, of 'bona fide conservation use property' to include bona fide agricultural and timber land not to exceed 4,000 acres of a single owner and 'bona fide residential transitional property' to include private single-family residential owner occupied property located in transitional developing areas not to exceed five acres of any single owner. Such methods of assessment and taxation shall be subject to the following conditions:

(A) A property owner desiring the benefit of such methods of assessment and taxation shall be required to enter into a covenant to continue the property in bona fide conservation use or bona fide residential transitional use; and

(B) A breach of such covenant within ten years shall result in a recapture of the tax savings resulting from such methods of assessment and taxation and may result in other appropriate penalties;"

SECTION 2.

The above proposed amendment to the Constitution shall be published and submitted as provided in Article X, Section I, Paragraph II of the Constitution. The ballot submitting the above proposed amendment shall have written or printed thereon the following:

"( ) YES Shall the Constitution of Georgia, for the purpose of protecting family farmland, be amended so as to increase the maximum acreage to qualify for assessment and taxation as a bona fide conservation use property from 2,000 acres to 4,000 acres?"
( ) NO

All persons desiring to vote in favor of ratifying the proposed amendment shall vote "Yes." All persons desiring to vote against ratifying the proposed amendment shall vote "No." If such amendment shall be ratified as provided in said Paragraph of the Constitution, it shall become a part of the Constitution of this state.

House Resolution No. 251
Ga. L. 2026, p. 1110

A RESOLUTION

Proposing an amendment to the Constitution so as to provide that all probate judges shall be elected in nonpartisan elections; to provide for related matters; to provide for submission of this amendment for ratification or rejection; and for other purposes.

BE IT RESOLVED BY THE GENERAL ASSEMBLY OF GEORGIA:

SECTION 1.

Article VI, Section VII of the Constitution is amended in Paragraph I by revising subparagraph (a) as follows:

"(a) All superior court and state court judges shall be elected on a nonpartisan basis for a term of four years. All Justices of the Supreme Court and the Judges of the Court of Appeals shall be elected on a nonpartisan basis for a term of six years. The terms of all judges thus elected shall begin the next January 1 after their election. All probate judges shall be elected on a nonpartisan basis for terms as provided for in Article IX, Section I, Paragraph III. All other judges shall continue to be selected in the manner and for the term they were selected on June 30, 1983, until otherwise provided by local law."

SECTION 2.

The above proposed amendment to the Constitution shall be published and submitted as provided in Article X, Section I, Paragraph II of the Constitution. The ballot submitting the above proposed amendment shall have written or printed thereon the following:

"( ) YES Shall the Constitution of Georgia be amended so as to require that all probate court judges be elected in nonpartisan elections?"
( ) NO

All persons desiring to vote in favor of ratifying the proposed amendment shall vote "Yes." All persons desiring to vote against ratifying the proposed amendment shall vote "No." If such amendment shall be ratified as provided in said Paragraph of the Constitution, it shall become a part of the Constitution of this state.

House Resolution No. 1243
Ga. L. 2026, p. 1109

A RESOLUTION

Proposing an amendment to the Constitution so as to authorize creation of the Georgia Next Generation 9-1-1 Fund; to provide for submission of this amendment for ratification or rejection; and for other purposes.

BE IT RESOLVED BY THE GENERAL ASSEMBLY OF GEORGIA:

SECTION 1.

Article III, Section IX of the Constitution is amended in Paragraph VI by adding a new subparagraph to read as follows:

"(s) The General Assembly is authorized to provide by general law for the creation of the Georgia Next Generation 9-1-1 Fund. The General Assembly may provide by general law for the dedication and deposit of revenues raised from specified sources for the purposes of the fund into the fund. Moneys in the fund shall be exclusively used for the expansion, maintenance, and operation of 9-1-1 systems throughout the state, including the transition to Next Generation 9-1-1, as such term may be defined by the General Assembly, and all expenses related thereto. Any other appropriation from the Georgia Next Generation 9-1-1 Fund shall be void. Contributions and revenues deposited to the fund shall not lapse and shall not be subject to the limitations of subparagraph (a) of this Paragraph or of Article VII, Section III, Paragraph II."

SUMMARIES OF PROPOSED CONSTITUTIONAL AMENDMENTS

Pursuant to requirements of the Georgia Constitution, Attorney General Christopher Carr, Secretary of State Brad Raffensperger, and Legislative Counsel Betsy Howerton hereby provide the summaries of the proposed constitutional amendments that will appear on the November 3, 2026, general election ballot for consideration by the people of Georgia (short captions are those adopted by the Constitutional Amendments Publication Board):

-1 -

Increases the maximum qualifying acreage for assessment and taxation as bona fide conservation use property.

House Resolution No. 32
Ga. L. 2025, p. 1081

"( ) YES Shall the Constitution of Georgia, for the purpose of protecting family farmland, be amended so as to increase the maximum acreage to qualify for assessment and taxation as a bona fide conservation use property from 2,000 acres to 4,000 acres?"
( ) NO

Summary

This proposal increases the maximum acreage to qualify for assessment and taxation as a bona fide conservation use property from 2,000 acres to 4,000 acres. It amends Article VII, Section I, Paragraph III of the Georgia Constitution, relating to uniformity, classification of property, assessment of agricultural land, and utilities, by revising subparagraph (e)(1).

A copy of this entire proposed constitutional amendment is on file in the office of the judge of the probate court and is available for public inspection.

- 2 -

Provides for the nonpartisan election of all probate court judges.

House Resolution No. 251
Ga. L. 2026, p. 1110

"( ) YES Shall the Constitution of Georgia be amended so as to require that all probate court judges be elected in nonpartisan elections?"
( ) NO

Summary

This proposal provides that all probate judges shall be elected in nonpartisan elections. It amends Article VI, Section VII, Paragraph I of the Georgia Constitution, relating to selection and term of office of judges, by revising subparagraph (a).

A copy of this entire proposed constitutional amendment is on file in the office of the judge of the probate court and is available for public inspection.

- 3 -

Authorizes creation of Georgia Next Generation 9-1-1 Fund for 9-1-1 systems expansion, maintenance, and operation.

House Resolution No. 1243
Ga. L. 2026, p. 1109

"( ) YES Shall the Constitution of Georgia be amended so as to authorize the General Assembly to dedicate certain existing revenues, including revenues reallocated by law, to a nonlapsing fund to be used exclusively for the expansion, maintenance, and operation of emergency 9-1-1 systems in this state?"
( ) NO

Summary

This proposal authorizes the General Assembly to provide by general law for the creation of the Georgia Next Generation 9-1-1 Fund. It amends Article III, Section IX, Paragraph VI of the Georgia Constitution, relating to appropriations to be for specific sums, by adding a new subparagraph (s).

A copy of this entire proposed constitutional amendment is on file in the office of the judge of the probate court and is available for public inspection.